

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	14-07-2026 17:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	14-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Power
विभाग का नाम/Department Name	Na
संगठन का नाम/Organisation Name	Ntpc Limited
कार्यालय का नाम/Office Name	Cg
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: tapasmishra@ntpc.co.in
वस्तु श्रेणी /Item Category	Handling ,Transport and Other Mining Services - Percentage quote based - Ash Transportation, Excavation & loading of pond ash at NTPC Nabinagar Ash Dyke, transporting pond ash by mechanical means in closed containers/dumpers
अनुबंध अवधि /Contract Period	1 Year(s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	15

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	5
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	2
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	ICICI
ईएमडी राशि/EMD Amount	5000000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	ICICI
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	15

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लभार्थी /Beneficiary :

NTPC Limited
As per NIT
(Ntpc Limited)

UIN Number NCTGC2415P

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any

impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Any Other Documents and Requirement to be mentioned by Buyer:[1781851332.pdf](#)

Scope of Work:[1782731203.pdf](#)

Terms and Conditions to be mentioned by Buyer for bidders to participate:[1782731218.pdf](#)

Handling ,Transport And Other Mining Services - Percentage Quote Based - Ash Transportation, Excavation & Loading Of Pond Ash At NTPC Nabinagar Ash Dyke, Transporting Pond Ash By Mechanical Means In Closed Containers/dumpers (1)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
SOR Items	Ash Transportation , Excavation & loading of pond ash at NTPC Nabinagar Ash Dyke, transporting pond ash by mechanical means in closed containers/dumpers
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No
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अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Project based (to be kept as 1)	अतिरिक्त आवश्यकता /Additional Requirement
1	Avinash Kumar Maurya	824303,Shivanpur PO-Ankhora Railway Station Bihar Aurangabad	1	Base Value in INR (inclusive of all taxes) : 3000000000

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

NTPC LIMITED

(A Government of India Enterprise)

**Buyer Added Bid Specific
Additional Terms and Conditions (ATC)**

**UNIFIED SHARED SERVICE CENTRE,
C&M GROUP-1, RAIPUR**

(This document is meant for the exclusive purpose of bidding against this package and shall not be transferred, reproduced or otherwise used for purposes other than that for which it is specifically issued.)

Excavation & loading of pond ash at **NTPC Nabinagar** Ash Dyke, transporting pond ash by mechanical means in closed containers/dumpers (covered with tarpaulin) with an arrangement to avoid spillage/flying of ash and unloading at construction site of road projects of NHAI and other Central or State Government Road construction department.

1. Additional Terms & Conditions (ATC) of this tender comprises the following documents:
 - a. Section-I: Notice Inviting Tender (NIT).
 - b. Section-II: Instructions to Bidders (ITB)
 - c. Section-III: Bid Data Sheet (BDS)
 - d. Section-IV: General Conditions of Contract (GCC)
 - e. Section-V: Special Conditions of Contract (SCC)
 - f. Section-VI: Technical Specifications and Terms & Conditions
 - g. Section-VII: Bill of Quantities (BOQ) (As per GeM)
 - h. Section-VIII: Forms and Procedures (Part 1 of 3, Part 2 of 3 & Part 3 of 3)
2. A complete set of documents as mentioned above are enclosed under "Scope of Work". **Terms and Conditions stipulated in ATC will supersede those in GEM GTC in case of any conflicting provisions.**

3. Rejection in Cases of Matching of IP Addresses:

Bidders may please note that GeM is capturing and showing the IP addresses used by the Buyer and the Bidder(s) /Seller(s). The received bids having matching/common IP address (Either Technical Bid or Financial Bid or Both) with either Bidder(s)/Seller(s) or Buyer, shall be outrightly rejected & shall not be considered for further evaluation.

4. Bidders are required to submit the documents as mentioned in the checklist appended below while submitting their bid and submit the duly filled checklist online on GeM portal in **'Additional ATC Documents'**.

Sl	Document Required	Action Required
1	Attachment 1: Bid Security / EMD (as per ITB Clause No. 14.0)	
	(i) Bank Guarantee , strictly in the format provided in the tender document (Submission of EMD BG in GeM Format shall not be accepted and such Bids shall be outrightly Rejected.)	To be uploaded online and Original BG to be submitted physically before the Bid submission deadline.

	(ii) MSE (UDYAM only) Certificate towards exemption of Bid Security / EMD (if applicable).	To be uploaded online
2	Bidder's Basic Information	To be uploaded online
3	Attachment 14: Declaration regarding GST	To be uploaded online
4	Site Visit Declaration	To be uploaded online
5	AST-01 Enlistment Certificate	To be uploaded online

5. Details for issue of e-BG

<u>e-BG details for new BGs</u>		
1	Beneficiary	NTPC Limited
2	Pan Number of the Beneficiary	AAACN0255D
3	Date of Incorporation of the Beneficiary	07.11.1975
4	Beneficiary Bank IFS C Code	SBIN0017313
5	Registered Address	NTPC Limited, NTPC Bhawan, Scope Complex, 7 Institutional Area, Lodhi Road, New Delhi -110003
6	Pin Code	110003
7	Active Mobile Number of the Beneficiary	Mobile no of dealing executive of case, 9424140852
8	Active E Mail Id of the Beneficiary	<u>Email id of dealing executive of case, tapasmishra@ntpc.co.in</u>
9	Beneficiary BU Code (BG Business Area)	1041

10	Contract reference number	Mention Tender ID
11	Vendor Code	Please mention vendor code
12	Local Address	Unified Shared Service Centre, Central Procurement Group-1, Western Region-II Head Quarter, Plot No .-87, Sector-24, Atal Nagar, Nava Raipur, Raipur, Chhattisgarh, Pin Code-492101

Mandatory Basic Information to be provided by the Bidder.

(To be submitted with Techno-Commercial Bid)

1. Name of Agency:

2. Address:

3. PAN No.:

4. NTPC Vendor Code (If Any):

5. Name of Proprietor / Partners / Directors:

a.

b.

c.

- d.
- e.
- f.

6. Dealing Person for this Tender:

- a. **Name:**
- b. **Mobile No.:**
- c. **Alt. Mobile No.:**

7. Mail ID:

Date:

Place:

Signature.....

(Name of Authorised person having Power of attorney)

Designation.....

Common Seal.....

ATTACHMENT - 15

**(UNDERTAKING FOR COMPLIANCE OF IMPORTANT CONDITIONS OF
TENDER BY BIDDER)**

(Mandatory Acceptance along with submission of bid on GEM portal)

To,

NTPC Ltd.,

CPG-1, USSC Raipur

Dear Sirs,

We hereby confirm that, we have carefully read the provisions of the following undertakings and accepting the same:

SI	Undertaking Type	Provisions of Undertaking	Acceptance
1.	Nil Deviation Certificate	No deviation, whatsoever, is permitted by the Employer to the provisions of Bidding Documents. The Bidders are advised that while making their Bid proposals and quoting prices, all conditions may appropriately be taken into consideration. Bidders are required to certify their full compliance to the complete Bidding Documents and its subsequent Amendment(s) / Clarification(s) / Addenda / Errata, if any, issued by the Employer by accepting the following condition: <i>"Do you certify full compliance to all Provisions of Bid Doc"</i> Acceptance of above condition shall be considered as Bidder's confirmation that any deviation to the any Provisions found anywhere in their Bid Proposal, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to the Employer, failing which the bid security shall be forfeited.	Accepted

2.	Declaration on Qualifying Requirements	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you certify full compliance on Qualifying Requirements.” Acceptance of above condition shall be considered as bidder's confirmation to the following: a) The number of reference Plants/Orders quoted by Bidder in the bid, for establishing compliance to the specified Qualifying Requirement (QR), are in accordance with the provision specified above. b) The reference Plants/ Orders/ declared shall only be considered for evaluation/ establishing compliance to Qualifying Requirement (QR). c) No change or substitution in respect of reference Plants/Orders for meeting the specified Qualifying Requirement (QR) shall be offered by the bidder.	Not Applicable
3.	Declaration on Safety Policy	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you accept the Safety Policy of NTPC”. Acceptance of above conditions shall be considered as bidder's confirmation that they shall abide by Safety Policy of the Employer as per the provisions of GCC Sub-Clause 10.4.9.	Accepted

4.	Declaration on Banning Policy	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you accept Withholding and Banning of Business Dealing Policy of NTPC” Acceptance of above condition shall be considered as bidder's confirmation that they shall abide by Banning Policy of the Employer displayed on NTPC's website http://www.ntpctender.ntpc.co.in indicating his compliance to the provisions of ITB Sub-Clause 32. The version of Policy for Debarment from Business dealings presently followed by NTPC is Rev-4.	Accepted
5.	Declaration on Fraud Prevention Policy	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you accept the Fraud Prevention Policy of NTPC”. Acceptance of above condition shall be considered as bidder's confirmation that they shall abide by Fraud Prevention Policy of the Employer displayed on NTPC's website http://www.ntpctender.ntpc.co.in indicating his compliance to the provisions of ITB Sub-Clause 31.	Accepted
6.	Declaration on Local Content	Bidders are required to confirm acceptance of the same by accepting the following condition: “Confirm that you are a LOCAL SUPPLIER, and the LOCAL CONTENT included in the PACKAGE FOR COMPLETE SCOPE OF WORK meets the MINIMUM LOCAL CONTENT requirements of the Tender.” Acceptance of above condition shall be considered as Bidder's confirmation that Bidder is meeting the requirement of fulfil the requirements of Local content for Class-I Local Supplier. In case aforesaid Confirmation/Certificate furnished by Contractor/Vendor is not in line with the declaration in respect of Local content in their bid, same shall be treated as false declaration and will be dealt in line with the Fraud Prevention Policy of NTPC.	Accepted

7.	Declaration on Restrictions on procurement from a Bidder of a country which shares a land border with India	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you certify full compliance on clause as per tender documents on Restrictions on procurement from a Bidder of a country which shares a land border with India?” / “Do you certify full compliance to all provisions of Bid Documents?” Acceptance of above condition shall be considered as Bidder's confirmation that Bidder has read and understood the ITB Clause regarding “Restrictions on procurement from a Bidder of a country which shares a land border with India” and its bid is in compliance to this clause. In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then its bid shall be rejected. In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB Clause, during execution of contract, this would be sufficient ground for immediate termination of the contract as per GCC Clause titled ‘Termination for Contractor’s Default’ and shall be dealt accordingly.	Accepted
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8.	Anti-Bribery and Anti-Corruption (ABAC) Policy	The Bidder and its employees along with its Associate/ Collaborator/ SubContractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with business of Employer shall strictly adhere to AntiBribery and Anti-Corruption (ABAC) Policy of Employer displayed on tender website https://ntpctender.ntpc.co.in/. Bidders shall certify their compliance on "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer by accepting the following: "Do you certify full compliance to all provisions of Bidding Document?" Acceptance of above condition shall be considered as bidder's confirmation that they and their employees along with their associate / collaborator/ subcontractors / sub vendors / consultants / service providers shall strictly abide by "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer as displayed on tender website at https://ntpctender.ntpc.co.in/ under section 'policy docs' and undertake that they represent and confirm that they are aware of, understand, and will comply with all applicable laws and regulations relating to anticorruption and anti-bribery and the ABAC Policy of Employer.	Accepted
9.	Compliance to "Conflict of Interest" provisions	Bidders shall certify their compliance on "Do you certify full compliance to all provisions of Bidding Document?" "We confirm that we have read and understood the ITB Clause 3 as indicated in BDS clause 21 regarding "Conflict of Interest" and our bid is in compliance to this clause. In case it is established that we have provided any false information in pursuance of the aforesaid ITB* Clause, while competing for this contract, then our bid shall be rejected and bid security shall be forfeited. We also understand that in case we become successful bidder, if it is established that we have not complied with terms of aforesaid	Accepted

		ITB Clause 3 as indicated in BDS clause 21, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly." Acceptance of above condition shall be considered as Bidder's confirmation that Bidder has read and understood the Clause regarding "Conflict of Interest" and its bid is in compliance to this clause. In case it is established that Bidder has provided any false information in pursuance of the aforesaid Clause, while competing for this contract, then its bid shall be rejected and EMD/bid security shall be forfeited. In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid Clause, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly.	
10.	Acceptance of Integrity Pact	Bidders are required to unconditionally accept the "Integrity Pact (IP)" as per Attachment-12 to the Bidding Documents which has been pre-signed by the Employer and confirm acceptance of the same by accepting the following condition: "Do you accept the provisions stipulated in the attached Integrity Pact". Acceptance of above conditions shall be considered as bidder's confirmation that they shall abide by provisions stipulated in all the 9 Sections of integrity pact of the Employer as per the provisions of ITB/GCC.	Accepted

11.	Mandatory Site Visit Clause	All prospective bidders must visit the NTPC Sites to familiarize themselves with the nature and quantum of work and site conditions and they have to mandatory submit the “Site Visit Declaration” signed by Authorized Representative of Agency along with their bid on GEM portal. Bidders are responsible for their own travel and other expenses related to this visit and no claims for additional costs or extensions of time will be entertained by NTPC. Any false or misleading or fraudulent submission of this certificate shall be dealt as per terms and conditions of tender documents. Format: “Site Visit Declaration” I declare that we have visited the NTPC _____ Site to familiarize ourselves with the nature and quantum of work and site condition and we have obtained all necessary information as to risks, contingencies and other circumstances which may influence or affect our Bid. We understand that by furnishing this certificate, Agency will be deemed to have full knowledge of the site conditions, and no claims for additional costs or extensions of time will be entertained by NTPC due to a lack of understanding of the site by the Agency.	Accepted
Acceptance of above conditions shall be considered as Bidder's confirmation that any deviation to the provisions of Bidding Documents found anywhere in their Bid Proposal, implicit or explicit , shall stand unconditionally withdrawn, without any cost implication whatsoever to the Employer, failing which the bid shall be rejected and bid security shall be forfeited. The submission of an online bid against the subject NIT will be treated as the acceptance and compliance of all the Bid document terms and conditions including GTC, STC and ATC and Corrigendum conditions. No separate signed copy of this declaration is required for its enforceability.			

ATTACHMENT - 14**DECLARATION REGARDING GST****GEM Bid No.:**.....**(To be submitted with Techno Commercial Bid duly filled in and signed**

Bidder's Name and Address:

To

NTPC Ltd.

.....

We hereby declare and confirm that we have considered the Following GST Rates while quoting the Price on GeM portal:

Sl. No.	Item Description	HSN Code	Mechanism (Basis of Charge) (Strike out whichever is not applicable)
10	Ash Transportation & Unloading		Forward Charge @ 18% OR Reverse Charge @ 5%
30.10	Ash Loading		
20.10	Ash Excavation		18%

Notes:

- (1) During Execution of the Contract applicable GST shall be paid/reimbursed by the Employer on submission of (GSTIN) Invoice along with Consignment Note issued by Contractor.
- (2) The Declaration of the above Scheme shall be supported by authentic documents so that it may be established that scheme declared above is in li

ne with declaration given to taxation authorities.

Date : _____ Name of Authorized
Person

Place : _____ Designation

“Site Visit Declaration”

(To be submitted with Techno Commercial Bid duly filled in and signed by Agency)

I declare that we have visited the NTPC _____ Site to familiarize ourselves with the nature and quantum of work and site condition and we have obtained all necessary information as to risks, contingencies and other circumstances which may influence or affect our Bid.

We understand that by furnishing this certificate, Agency will be deemed to have full knowledge of the site conditions, and no claims for additional costs or extensions of time will be entertained by NTPC due to a lack of understanding of the site by the Agency.

- **Date and Time of Visit:**

- **Location:**

Seal & Signature of

Auth. Representative of Agency

ATTACHMENT-17

.....
PACKAGE FOR

..... **PROJECT BIDDING DOCUMENT**
T NO.

(duly filled and signed format on Compliance to “Conflict of Interest” provisions to be submitted along with Bid)

We confirm that we have read and understood the ITB Clause 3 as indicated in BDS clause 21 regarding “Conflict of Interest” and our bid is in compliance to this clause.

In case it is established that we have provided any false information in pursuance of the aforesaid ITB* Clause, while competing for this contract, then our bid shall be rejected and bid security shall be forfeited.

We also understand that in case we become successful bidder, if it is established that we have not complied with terms of aforesaid ITB Clause 3 as indicated in BDS clause 21, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of “Policy for Disengagement from Business Dealings” and shall be dealt accordingly.

Date :

Name of Authorized Person

Place :

Designation

2. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues

or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---